

24VECV06094 24VECV06094

County: los-angeles

Division: Civil Law and Motion

Department: I

Hearing date: 2026-07-27

Motion: PLAINTIFF'S MOTION FOR ATTORNEYS' FEES, COSTS, AND EXPENSES

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Case Number: 24VECV06094 Hearing Date: July 27, 2026 Dept: I

SUPERIOR

COURT OF THE STATE OF CALIFORNIA

COUNTY

OF LOS ANGELES

YEVA

OHANJANYAN,

Plaintiff,

vs.

FCA US LLC, et. al.,

Defendants.

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CASE

NO: 24VECV06094

[TENTATIVE]

ORDER RE:

PLAINTIFF'S

MOTION FOR ATTORNEYS' FEES, COSTS, AND EXPENSES

Dept.

I

HEARING

DATE: July 27, 2026

TIME: 8:30 A.M.

COMPLAINT

FILED: December 9, 2024

TRIAL

DATE: None

I.

BACKGROUND

On or about August 22, 2023, Plaintiff Yeva Ohanjanyan ("Plaintiff") leased a new 2024 Jeep Wrangler ("Vehicle") manufactured by Defendant FCA US LLC and from Defendant FAB4 LLC's dealership. (Compl., ¶¶ 1-5.) Shortly thereafter, Plaintiff experienced various defects that substantially impaired the use, value, and safety of the Vehicle. (Id. at ¶ 8.) As a result of the defects and Defendants' inability to repair the Vehicle, Plaintiff revoked acceptance of the Vehicle in writing on October 29, 2024. (Id. at ¶ 19.) Defendants have refused to provide Plaintiff with remedies Plaintiff is entitled to upon revocation. (Id. at ¶ 21.)

On December 9, 2024, Plaintiff filed a Complaint alleging (1) fraud and deceit; (2) breach of written warranty pursuant to Magnuson-Moss Warranty Act; (3) breach of implied warranty pursuant to the Magnuson-Moss Warranty Act; (4) breach of written warranty pursuant to the Song-Beverly Consumer Warranty Act; (5) breach of implied warranty pursuant to the Song-Beverly Consumer Warranty Act; (6) Violation of Business & Professions Code section 17200, et seq.; (7) violation of Business & Professions Code section 17500, et seq.; (8) negligence; and (9) strict liability.

On June 26, 2026, Plaintiff filed this Motion for Attorneys' Fees, Costs, and Expenses.

On July 14, 2026, Defendant FCA US LLC ("FCA") filed an opposition.

On July 20, 2026, Plaintiff filed a reply.

II.

LEGAL

STANDARDS

"Any buyer of consumer goods who is damaged by a failure to comply with any obligation under this chapter or under an implied or express warranty or service contract may bring an action for the recovery of damages and other

legal and equitable relief.” (Civ. Code § 1794, subd. (a).)

“If the buyer prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action.” (Civ. Code § 1794, subd. (d).)

III.

DISCUSSION

Plaintiff moves the Court, pursuant to Civil Code section 1794, for an award of attorneys' fees and costs in Plaintiff's favor and against Defendant in the amount of \$82,561.00, consisting of (1) \$80,806.00 in attorneys' fees ((\$14,340.00 for Hovanes Margarian, \$7,176.00 for Shushanik Margarian, \$52,920.00 for Akop Jack Ter-Saakyan, and \$6,370.00 for Patrick Kenneth Kimball) and \$1,755.00 in assistant fees; (2) a lodestar multiplier in the amount the Court deems appropriate; (3) approving reimbursement of \$6,025.56 in costs and expenses; and (4) setting a deadline of 30 days after the Court Order for Defendant to pay Plaintiff's attorneys' fees, costs, and expenses.

A.

Entitlement to
Fees

Defendant does not oppose the motion as to the issue of entitlement to fees.

It is undisputed, then, that Plaintiff is the prevailing party and, as such, is entitled to an award of attorneys' fees pursuant to Civil Code section 1794, subdivision (d) and the parties' settlement.

B.

Reasonableness
of Fees

The Court turns to the issue of reasonableness of the fees sought. “[T]rial courts have broad discretion in determining the amount of a reasonable attorney's fee award. This determination is necessarily ad hoc and

must be resolved on the particular circumstances of each case.” (Meister v. Regents of University of California (1998) 67 Cal.App.4th 437, 452.) “Trial judges are entrusted with this discretionary determination because they are in the best position to assess the value of the professional services rendered in their courts.” (Christian Research Institute v. Alnor (2008) 165 Cal.App.4th 1315, 1321.)

“[O]nce a party has established he or she is entitled to fees, the lodestar method is generally presumed to be the starting point in analyzing the appropriate amount of attorney fees. Under this method, a court first calculates the number of hours reasonably spent multiplied by the reasonable hourly rate for each billing professional and then may adjust the amount based on various relevant factors to ensure the fee reflects the fair market value [of the attorney services] for the particular action. (K.I. v. Wagner (2014) 225 Cal.App.4th 1412, 1425 [quotations and citations omitted].)

a.
Reasonableness
of Hourly Rates

“In determining hourly rates, the court must look to the prevailing market rates in the relevant community. The rates of comparable attorneys in the forum district are usually used. In making its calculation, the court should also consider the experience, skill, and reputation of the attorney requesting fees. The court may rely on its own knowledge and familiarity with the legal market in setting a reasonable hourly rate.” (Heritage Pacific Financial, LLC v. Monroy (2013) 215 Cal.App.4th 972, 1009 [internal quotations and citations omitted].)

The hourly rates in this matter are set forth as follows:

Hovanes Margarian
 (“Hovanes”)—\$750 per hour for contingency cases and \$650 per hour for non-contingency cases

Shushanik
Margarian (“Shushanik”)—\$670 per hour for contingency cases and \$570 per hour for non-contingency cases

Patrick Kenneth Kimball ("Kimball")—\$700

per hour for contingency cases and \$600 per hour for non-contingency cases

Akop Jack Ter-Saakyan ("Ter-Saakyan")—\$700

per hour for contingency cases and \$600 per hour for non-contingency cases

Plaintiff's Counsel Assistant, Elimira

Oganyan ("Oganyan")—\$150 per hour

Defendant argues that the hourly rates should be capped

at \$495 per hour for senior attorneys and \$295 per hour for associate attorneys

using the Real Rate Report. Defendant does not challenge the rate of Plaintiff

Counsel's Assistant.

Plaintiff

has demonstrated that the hourly rates are reasonable. Hovanes has been

practicing law and handling consumer protection cases for nearly 20 years,

focusing almost exclusively on automotive litigation. (Hovanes Decl., ¶ 13.) Hovanes

has handled over 3,000 cases and presently has over 200 pending matters. (Ibid.)

About 85% of Hovanes' practice focuses on consumer rights litigation handling

causes of action like those alleged in this matter. (Ibid.) Hovanes billed

time on this matter at the rate of \$650 per hour through 06/30/2025, and at

\$750 per hour for work performed on or after 07/01/2025. (Id. at ¶ 16.) Hovanes

contends that courts within Los Angeles, Orange County, and Riverside have

confirmed his rates of \$650 or \$750 to be reasonable. (Id. at ¶ 17.)

Shushanik

has 8 years of experience and has handled primarily consumer class action

litigation, consumer protection litigation involving defective automobiles (CA

Lemon Law), and consumer fraud litigation involving deceptive practices by

automobile dealerships distributing vehicles in the United States, and

automobile financing and/or leasing lenders operating in the State of

California. (Shushanik Decl., ¶ 3.) Of Counsel Kimball has been handling civil

cases for more than 16 years and has practiced lemon law periodically

throughout the last 16 years and has handled at least 1,000 cases. (Kimball

Decl., ¶ 4.) Ter-Saakyan has more than 16 years of experience as an attorney with

a focus on consumer protection. (Ter-Saakyan Decl., ¶ 3.) Plaintiff has also

demonstrated that the \$100 increase for the contingency matter was reasonable

to compensate for counsel bearing the risk of working on the case without

receiving any compensation.

Accordingly,
the Court finds the hourly rates to be reasonable.

b.
Reasonableness
of Time Incurred

“[T]he verified time statements of the attorneys, as officers of the court, are entitled to credence in the absence of a clear indication the records are erroneous.” (Horsford v. Board of Trustees of California State University (2005) 132 Cal.App.4th 359, 396.) “In challenging attorney fees as excessive because too many hours of work are claimed, it is the burden of the challenging party to point to the specific items challenged, with a sufficient argument and citations to the evidence. General arguments that fees claimed are excessive, duplicative, or unrelated do not suffice.” (Premier Medical Management Systems, Inc. v. California Ins. Guarantee Assn. (2008) 163 Cal.App.4th 550, 564.)

That said, “[a] fee request that appears unreasonably inflated is a special circumstance permitting the trial court to reduce the award or deny one altogether.” (Serrano v. Unruh (1982) 36 Cal.3d 621, 635). The court may “make across-the-board percentage cuts either in the number of hours claimed or in the final lodestar figure” in consumer law cases “when a voluminous fee application is made.” (Warren v. Kia Motors America, Inc. (2018) 30 Cal.App.5th 24, 41 [quotations and citation omitted].)

Here, Plaintiff contends that Hovanes worked 19.40 hours, Shushanik worked 12 hours, Ter-Saakyan worked 75.60 hours, and Kimball worked 9.10 hours. The firm billings are attached as Exhibit A in Hovanes’ Declaration. (Hovanes Decl., Ex. A.)

In opposition, Defendant contends that the hours should be reduced at least 35%. Defendants contend that all the time billed for Plaintiff’s Motion to Compel Further Responses to Requests for Admission, Set Three are unreasonable because the Court denied the motion in its entirety. Next, Defendant contends that the time associated with Plaintiff’s claims of drafting and reviewing discovery was excessive and disproportionate because this case dealt with two repair visits on or about August 23, 2024 and October 15, 2025. The discovery requests were similar, if not identical, to the discovery

requests utilized in dozens of other Song-Beverly Act matters. Defendant claims all four attorneys billed for duplicative work. Next, Defendant argues that clerical tasks should not be billed for at all. Additionally, Defendant argues that Plaintiff should not bill for three separate vehicle inspections that could have been done once. Defendant argues that Plaintiff unnecessarily billed to review discovery after the case had been settled. Finally, Defendant contends that 14.50 hours associated with this Motion is excessive.

Reviewing the firm's billings, the Court finds several of the billings to be unreasonable. First, the Court will reduce the time billed for a motion to compel further responses to requests for admission. While Defendant contends that the Motion was improper and should not be compensated for, Defendant only provides non-binding federal case law to support this contention. However, the Court agrees that the amount of time spent on the denied motion was unreasonable. Plaintiff's counsel spent 0.90 hours preparing Meet and Confer letters. (Hovanes Decl., Ex. A.) The Court will reduce the hours to become 0.40 hours for Ter-Saakyan's preparation of Meet and Confer letters at a rate of \$700, for a reduction of 0.20 hours and \$140. Ter-Saakyan spent 5.4 hours drafting and preparing the motion. (Hovanes Decl., Ex. A.) The Court finds this amount of time to be unreasonable and reduces his time to 2.4 hours, a reduction of 3 hours at \$700 per hour (\$2,100). Hovanes spent an additional 0.60 hours on the motion. (Hovanes Decl., Ex. A.) The Court reduces his hours to 0.40 hours, a reduction of 0.20 hours at a rate of \$750 per hour (\$150). In total, the amount billed for the motion to compel will be reduced by \$2,390.

Next, Ter-Saakyan

spent 4.8 hours calculating fees and preparing a breakdown of expended hours. (Hovanes Decl., Ex. A.) Shushanik then spent 0.40

hours that same day also preparing a breakdown. (Ibid.) Hovanes also appears to have spent 0.50 hours preparing the breakdown that day. (Ibid.)

Finally, Kimball spent 0.30 hours also preparing the breakdown on the same day.

(Ibid.) The Court finds these billing entries totaling 6 hours to be duplicative and excessive. Accordingly, the Court will not award attorneys' fees for Shushanik, Hovanes, and Kimball's duplicative work, for a reduction by \$853. Ter-Saakyan's 4.8 hours for calculating fees and preparing a breakdown will be reduced from 4.8 hours to 4 hours for a reduction of \$560. In total, the fees for these entries will be reduced by \$1,413.

Next, the

Court finds several of the entries to be for non-compensable clerical work.

Preparing Proof of Service of Summons and handing it to the person in charge of service is clerical work and will not be awarded, resulting in a reduction by \$165. The Court also finds that Plaintiff Counsel's Assistant, Elimira Oganyan, billed excessive hours for proofreading discovery requests and motions. Oganyan billed 1.40 hours for proofreading discovery requests, Set One, 0.60 hours for proofreading discovery requests, Set Two, and 0.50 hours for proofreading discovery requests, Set Three. (Hovanes Decl., Ex.

A.) The Court finds these hours to be unreasonable. The Court reduces to 0.50 hours for Set One, 0.30 for Set Two, and 0.20 for Set Three. Thus, the amount is reduced by 1.5 hours at a rate of \$150 for a total reduction by \$225. The Court also reduces Oganyan's time spent proofreading the motion to compel further responses and separate statement to 1 hour, for a reduction of \$150. Oganyan's time spent proofreading discovery requests Set One and Two to Dealer is reduced from 1.40 hours to 1 hour, for a reduction of 0.40 hours and \$60. In total, the Court reduces the amount billed for these tasks by \$600.

Next, the Court agrees that the discovery conducted after the acceptance of the 998 offer was not "reasonably incurred by the buyer in connection with the commencement and prosecution of such action." (Civ. Code, § 1794, subd. (d).) Thus, it was unreasonable to expend 2.9 hours reviewing the Dealer's discovery responses from January 14 to January 15, 2026. (Hovanes Decl., Ex. A.) Thus, attorneys' fees for these entries will be reduced by \$2,030 for the 2.9 hours billed at a rate of \$700 per hour.

Next, the Court agrees that the 14.50 hours spent on this Motion is excessive and unreasonable. (Hovanes Decl., Ex. A.) Plaintiff contends it took 5 hours to review the breakdown of expended hours, draft this Motion, and draft the declarations in support of this Motion. (Ibid.) The Court reduces Hovanes' review of the breakdown of hours from 0.30 to 0.10 hours, for a reduction of 0.20 hours and \$150. Next, the Court reduces the drafting of the Motion from 2.30 hours to 1.5 hours, for a reduction by 0.8 hours at a rate of \$700 per hour for a reduction of \$560. Additionally, the Court does not find it reasonable to allot an estimated 2.50 hours to review the opposition and reduces this to 1.50 hours, for a reduction of \$750. Nor does the Court find it reasonable to allot 4.50 hours to preparing a reply to this Motion. The Court reduces the amount of time estimated for the reply to 1 hour, for a reduction of 3.50 hours at a rate of \$750, for a total reduction by \$2,625. Preparation for the hearing and time spent attending the hearing is reduced from 2.5 hours to 1 hour, for a reduction of 1.5 hours at a rate of

\$750, for a reduction by \$1,125. Thus, the amount awarded for time spent on this Motion is reduced by \$5,210.

Having reviewed the time spent propounding, reviewing, and analyzing multiple long sets of discovery, the Court finds the amount of time expended on discovery to be unreasonable. Also, the Court is not persuaded by the argument that the three vehicle inspections were reasonable or necessary. Nor has Plaintiff cited any case law to support this contention. For excessive and duplicative work, the Court further reduces the fee award by an additional \$7,000..

Accordingly, Plaintiff's request for \$82,561.00 for attorney fees and assistant fees is reduced by \$18,643 for a total of \$63,918 in fees.

C.
Multiplier

While the lodestar reflects the basic fee for comparable legal services in the community, it may be adjusted based on various factors, including "(1) the novelty and difficulty of the questions involved, and the skill displayed in presenting them; (2) the extent to which the nature of the litigation precluded other employment by the attorneys; (3) the contingent nature of the fee award" and (4) the success achieved. (*Serrano v. Priest* (1977) 20 Cal.3d 25, 49.)

Nonetheless, the court must not consider extraordinary skill and the other *Serrano* factors to the extent these are already included with the lodestar. (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1138-1139.) "[A] trial court should award a multiplier for exceptional representation only when the quality of representation far exceeds the quality of representation that would have been provided by an attorney of comparable skill and experience billing at the hourly rate used in the lodestar calculation. Otherwise, the fee award will result in unfair double counting and be unreasonable." (*Id.* at 1139.)

Plaintiff requests a lodestar multiplier enhancement in the amount the court deems appropriate. The Court finds that under the circumstances of this case, a lodestar multiplier is not appropriate. Nothing before the Court indicates that the case presented novel issues or that the

quality of representation far exceeded the quality of representation that would have been provided by attorneys of comparable skill and experience billing at the same rates. Further, in terms of the contingency basis, the Court finds that such consideration and risk is already included within the lodestar amount.

Accordingly, the Court declines to award a lodestar multiplier

D.
Costs

Allowable costs “shall be reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation.” (Code Civ. Proc., § 1033.5, subd. (c)(2).) Any items not specifically mentioned by statute “may be allowed or denied in the court's discretion.” (Id., subd. (c)(4).) The Beverly-Song Act allows a successful plaintiff to recover both “costs” and “expenses.” (See Civ. Code, § 1794, subd. (d).)

“If the items appear to be proper charges the verified memorandum is prima facie evidence that the costs, expenses and services therein listed were necessarily incurred by the defendant [citations], and the burden of showing that an item is not properly chargeable or is unreasonable is upon the [objecting party].” [Citation.]” (Nelson v. Anderson (1999) 72 Cal.App.4th 111, 131.)

Plaintiff requests a total of \$6,025.56 in costs. The cost items appear to be proper, and there was no opposition challenging any particular costs. Therefore, the Court awards Plaintiff the requested amount without any reductions.

IV.
CONCLUSION

Plaintiff's Motion for Attorneys' Fees, Costs, and Expenses is granted in the reduced amount of \$69,943.56, consisting of \$63,918 in attorneys' fees and \$6,025.56 in costs.

Moving
party to give notice.

Dated: July
27, 2026

Hon. Karen Moskowitz

Judge
of the Superior Court